

STATE OF ILLINOIS, CIRCUIT COURT _____ COUNTY		HARDSHIP MOTION		<i>For Court Use Only</i>
Instructions ▼ Enter above, the county name where the case was filed. Enter description of vehicle (year, make, and model). Include VIN, if known. Enter your name as Claimant. Enter the Case Number given by the Circuit Clerk.	State of Illinois v. _____ Description of vehicle taken _____ Claimant (First, middle, last name)			_____ Case Number

1. I ask the court to temporarily return my vehicle during this civil asset forfeiture court case.

In 2, enter the County and State you live in.
In 3, enter a description of your vehicle and enter the VIN, if you know it.
In 4, complete a-d. If you have any additional reasons, check the box that says <i>Additional Information</i> form and file it with this <i>Motion</i> .
In 4a, explain the substantial hardship (for example, I cannot get to school or work, or I need it for medical reasons).

2. I live in _____ County _____ State .

3. I own a _____ .
Description (year, make, and model of vehicle)

The VIN of my vehicle is (if known): _____ .

4. Not being able to use my vehicle during this court case creates a substantial hardship in this way or ways: (you must complete sections a-d):

a. The substantial hardship is: _____

☐ I need more room to explain the details of my situation and have attached an *Additional Information for Hardship Motion* form.

b. My available public transportation options are: _____

☐ None

c. My other available forms of transportation are: _____

☐ None

d. My alternatives to lessen the hardship other than giving the vehicle back are: _____

☐ None

In 4b, explain whether you can use a bus or train to get around. If not, check "none."
In 4c, explain whether you have any other ways to get around, like a bike or another car/ridesharing. If none, check "none."
In 4d, explain any alternatives to lessen the hardship if there are any. If none, check "none."

In 5, check the first box if you filed your motion within 28 days of your preliminary review court date. Check the second box if you filed it later and enter the reason.

5. ☐ I filed this motion within 28 days of the hearing about probable cause (*preliminary review*).
☐ I did not file this motion within 28 days because: _____

6. The hardship to me outweighs the state's interest in safeguarding the vehicle.
7. I respectfully ask that this court grant my *Hardship Motion*.

Under the Code of Civil Procedure, [735 ILCS 5/1-109](#), making a statement on this form that you know to be false is perjury, a Class 3 Felony.

Sign and print your name in front of an official Illinois notary public.

Enter your complete address, telephone number, and email address, if you have one.

Under [735 ILCS 5/1-109](#) your signature means:

1) everything in this document is true and correct, or I have been informed or I believe it to be true and correct, and 2) I understand that making a false statement on this form is perjury and has penalties provided by law.

/s/

Your Signature

Street Address

Print Your Name

City, State, ZIP

Telephone

Email

Firm Name (if any)

Attorney # (if any)

Be sure to **check your email every day** so you do not miss important information, court dates, or documents from other parties.

DO NOT complete this section. The notary will complete it.

Notary Public

State of Illinois

County of _____

Signed and sworn to before me on _____ by _____ .
 Date Name

Seal

Signature of Notary